

		or receive any benefit of this Agreement.” (<i>Id.</i>, at § IV(C)(1).) The agreement further confirms that the administrator “shall pay Settlement Shares” to “all Class Members (who do not submit valid requests to be excluded from the Action).” (<i>Id.</i>, at § IV.J.) Finally, the release language provides, “Plaintiff, the Class, and each Class Member who has not properly submitted a timely and valid request to be excluded from the Action” will release “all claims . . . includ[ing] . . . all such claims arising under . . . the Private Attorneys General Act.” (<i>Id.</i>, at § V.A.) There is no separate PAGA-only release applicable to aggrieved employees. The <i>Gutierrez</i> agreement is functionally identical to the <i>Valenzuela</i> agreement. It states that a payment will be made in exchange for settlement of PAGA claims. It provides that the individual share of the PAGA payment will be paid only to participating class members, not to all aggrieved employees, and it contains a release of PAGA claims that purports to bind only class members. But because the real party in interest on the PAGA claims is the state rather than the employee, Robinson’s PAGA claims were barred even though he opted out of the settlement. The same result holds here. Padilla’s arguments about the scope of the release in the settlement agreement confuse the contractual release language with the effect of entry of judgment on the state’s PAGA claim. Again, Padilla owns no PAGA claim of his own. By operation of law, under <i>Arias</i>, he is bound by the entry of judgment on the <i>Valenzuela</i> PAGA claim to the same extent the state would be if the state itself had filed the <i>Valenzuela</i> PAGA claim. Whether Padilla is bound by the <i>Valenzuela</i> release is irrelevant. Judgment was entered on the state’s PAGA claim. That judgment binds the aggrieved employees, even if they are nonparties. (See <i>Arias, supra</i>, 46 Cal.4th at p. 986.) Accordingly, WDPR’s motion is granted. Because the Court sees no way Padilla can amend his complaint to avoid the preclusive effect of the <i>Valenzuela</i> judgment, leave to amend is denied.
9	Tanski vs. Toyota Motor Sales, U.S.A., Inc. 2026-01573539	Defendant’s Demurrer to Amended Complaint Defendant’s Demurrer to Complaint Defendant’s Motion to Seal Defendant’s Motion to Seal <u>MOTION TO SEAL</u> Defendants Toyota Motor Sales U.S.A., Inc., Toyota Motor Engineering & Manufacturing North America, Inc., and Toyota Motor Manufacturing, California, Inc. move to seal (1) the opening memorandum in support of their demurrer and (2) the settlement agreement attached as Exhibit B to the declaration of Gretchen Eddy. Both motions are DENIED. The clerk is ordered to publicly file ROA 70 (the memorandum) and ROA 71 (the declaration). <u>GROUND S FOR RULING</u> A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

	Defendants claim two overriding interests. First, they contend the confidentiality clause in the settlement agreement creates an overriding interest that justifies sealing the agreement and the portions of the memorandum that refer to it. In support of this argument, they cite to a footnote in <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178. There, the California Supreme Court noted that “Courts have acknowledged various other overriding interests,” and it string-cited cases that found overriding interests. (<i>Id.</i>, at p. 1222 fn. 46.) In a parenthetical, the court described one of these cases, from the United States Court of Appeals for the Third Circuit, as holding that “enforcement of binding contractual obligations not to disclose” was an overriding interest. (<i>Ibid.</i> (describing <i>Publiker Industries, Inc. v. Cohen</i> (3d Cir. 1984) 733 F.2d 1059).) <i>NBC Subsidiary</i> did not say that the Third Circuit’s discussion of federal law was an accurate statement of California law. Rather, it included <i>Publiker</i> in a list of cases that had found different overriding interests. Another of Defendants’ cases, <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, explains why their reliance on <i>NBC Subsidiary</i> is incorrect. <i>Universal City Studios</i> points out that <i>NBC Subsidiary</i> contains only a brief description of <i>Publiker</i>. “[A] thorough reading of all of the <i>Publiker</i> opinion makes it clear that the Third Circuit requires more than a mere agreement of the parties to seal documents filed in a public courtroom. . . . sealing can only occur under the Third Circuit rule when there has been a specific showing of serious injury.” (<i>Id.</i>, at pp. 1281-1282.) Subsequent California authority holds that “the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 36.) Defendants put on no evidence of specific, serious injury that will result if the terms of the settlement agreement are made public. Accordingly, the agreement’s confidentiality provision is not an overriding interest that supports sealing. Second, citing <i>Monster Energy Co. v. Schechter</i> (2019) 7 Cal.5th 781, Defendants contend California’s strong public policy favoring settlement of actions, which “supports attendant needs for confidentiality,” is an overriding interest. (<i>Id.</i>, at p. 793.) The Court disagrees. <i>Monster Energy</i> considered whether an attorney was bound by a settlement agreement’s confidentiality clause when he approved that agreement as to form. It did not consider whether the policy favoring settlement justified sealing a confidential settlement agreement when the agreement itself was the subject of a subsequent lawsuit. “Cases do not stand for propositions not considered.” (<i>State Water Resources Control Bd. v. Superior Court</i> (2025) 115 Cal.App.5th 734, 772.) Because Defendants have not identified an overriding interest that supports sealing the record, their motions are denied. <u>DEMURRER OF TOYOTA MOTOR SALES, U.S.A., INC. ET AL TO FIRST AMENDED COMPLAINT</u> Defendants Toyota Motor Sales U.S.A., Inc., Toyota Motor Engineering & Manufacturing North America, Inc., and Toyota Motor Manufacturing, California, Inc. demur to the First Amended Complaint (FAC) of Plaintiff Ariel Tanski. For the reasons set forth below, Defendants’ demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Defendants’ unopposed request for judicial notice is GRANTED. <u>GROUND FOR RULING</u> I. Background Plaintiff owned a Toyota vehicle. He was involved in an accident while driving his vehicle and sustained injuries. On January 3, 2025, he filed suit against various Toyota-related companies (including some of the moving Defendants here), alleging claims sounding in products liability. (FAC ¶ 26; RJN Ex. B.) The
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	parties resolved the case with a formal settlement agreement. (FAC ¶ 27; RJN Ex. A.) Plaintiff dismissed his products liability suit with prejudice on April 10, 2026. (RJN Ex. C.) Plaintiff’s counsel in the products liability suit was the same counsel that represents him in this suit. (See generally RJN Exs. A-C.) Included in the settlement agreement is the following provision: Without limiting the breadth of the foregoing, RELEASOR and his attorneys expressly agree not to publicize or otherwise allow the publication of this settlement via television, radio, Internet, firm websites, newspapers, magazines, or in any other media source, and agree not to discuss with any media source, verdict or settlement reporter, or issue any press releases about anything related to the ACTION, the CLAIMS, the DAMAGES, the INJURIES, the INCIDENT, the VEHICLE, any of terms, conditions and amounts in this SETTLEMENT AGREEMENT, or the negotiations and discussions that led to the parties entering this SETTLEMENT AGREEMENT. The parties acknowledge that this Section 13.0 is a material clause of the SETTLEMENT AGREEMENT and that no agreement would have been reached without it. FAC ¶27. Roughly six weeks later, Plaintiff filed the present suit, naming the moving Defendants and Toyota Motor Credit Corporation (which has filed its own separate demurrer) as defendants. He contends the above provision (described by Plaintiff as a “non-disparagement provision” and by Defendants as a “confidentiality provision”) violates Civ. Code § 1748.50, which provides, “Any provision in a contract or agreement that prohibits a consumer from publishing or making statements about the business as a condition of receiving a partial or complete refund or any other consideration or thing of value is contrary to public policy and shall be void and unenforceable.” On behalf of a putative class of Californians who entered into settlement agreements with Defendants containing similar provisions, Plaintiff brings claims for declaratory relief, injunctive relief, and severance of the offending terms. II. <u>Standard of Review</u> In reviewing the sufficiency of a complaint against a demurrer for failure to state facts sufficient to state a cause of action, the Court is guided by long-settled rules. The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591.) “The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded.” (<i>Rodas v. Spiegel</i> (2001) 87 Cal.App.4th 513, 517.) “Further, [the Court] gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) III. <u>Discussion</u> Defendants put forth several grounds for demurrer. The Court need only consider the first: the statute does not apply to Plaintiff’s settlement agreement. A. <u>Statutory Construction</u> The California Supreme Court has explained: “The basic rules of statutory construction are well established. ‘When construing a statute, a court seeks to determine and give effect to the intent of the enacting legislative body.’ [Citation.] “‘We first examine the words themselves because the statutory language is generally the most reliable indicator of legislative intent. [Citation.] The words of the statute should be given their ordinary and
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	usual meaning and should be construed in their statutory context.” [Citation.] If the plain, commonsense meaning of a statute’s words is unambiguous, the plain meaning controls.’ [Citation.] But if the statutory language may reasonably be given more than one interpretation, ““courts may consider various extrinsic aids, including the purpose of the statute, the evils to be remedied, the legislative history, public policy, and the statutory scheme encompassing the statute.”” (People v. King (2006) 38 Cal.4th 617, 622.) 1. <u>Language of the Statute</u> As noted above, the statute provides: “Any provision in a contract or agreement that prohibits a consumer from publishing or making statements about the business as a condition of receiving a partial or complete refund or any other consideration or thing of value is contrary to public policy and shall be void and unenforceable.” (Civ. Code § 1748.50.) The plain language indicates the statute prohibits businesses from forcing non-disclosure provisions on consumers before they will provide refunds. Plaintiff rejects this conclusion. He contends the reference to “any other consideration or thing of value” is broad enough to encompass payments made to settle litigation. The Court disagrees. Plaintiff’s reasoning violates the canon of <i>ejusdem generis</i>. “The canon, which ““applies whether specific words follow general words in a statute or vice versa,”” instructs that ““the general term or category is ‘restricted to those things that are similar to those which are enumerated specifically.’”” [Citation.] It is based on the following logic: Had the Legislature ““intended the general words to be used in their unrestricted sense, it would not have mentioned the particular things or classes of things which would in that event become mere surplusage.”” (Brown v. City of Inglewood (2025) 18 Cal.5th 33, 43.) Partial or complete refunds are a subset of “any other consideration or thing of value.” Interpreting “any other consideration or thing of value” as Plaintiff proposes would render the Legislature’s reference to partial or complete refunds mere surplusage. Accordingly, under <i>ejusdem generis</i>, “any other consideration or thing of value” is best understood as consideration similar to a partial or total refund, e.g., a gift card given to a complaining consumer. 2. <u>Legislative History</u> Legislative history should be considered only if a statute is ambiguous. The Court does not find the statute ambiguous. However, to the extent any ambiguity exists, legislative history confirms the Court’s reading of the statute. The Senate Rules Committee’s report on the bill that became Civ. Code § 1748.50 explains that “[c]onsumer reviews have become the lodestar for fellow consumers interested in learning more about a product, service or experience.” (Sen. Rules Com., Off. of Sen. Floor Analyses, Analysis of Assem. Bill No. 1900 (2023-2024 Reg. Sess.) as amended June 23, 2024, at p. 2; attached as Exh. D to Eddy Declaration.) It continues: “However, some unscrupulous businesses have attempted to silence unsatisfied customers by requiring, as a condition of receiving a refund, the customer to sign a nondisclosure agreement, preventing other consumers from getting the full picture. To address this practice, this bill provides that any contractual provisions that prohibit a consumer from publishing or making statements about the business as a condition of receiving a partial or full refund or other consideration or thing of value is void and unenforceable.” (<i>Ibid.</i>) The bill’s author commented, “This bill is motivated by reports that businesses have conditioned refunds on consumers contractually agreeing to refrain from publishing or otherwise making negative statements about the business.” (<i>Id.</i>, at p. 3.) As an example, the author discussed a dental device company that “promised easy refunds to consumers” but “required almost all consumers seeking a refund to sign a restrictive NDA before they could
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		get any money back.” (<i>Id.</i>, at p. 4.) The Consumer Attorneys of California commented in support of the bill. They wrote, “Several studies show that consumers read reviews before making a purchase; we agree that businesses should not attempt to block the transparency of this information to conceal potentially poor and unsatisfactory business practices.” (<i>Id.</i>, at p. 5.) In sum, the legislative history confirms that Civ. Code § 1748.50 concerns nondisclosure provisions required as a condition of refunds. B. <u>Application</u> The settlement agreement at issue resolved a personal injury claim sounding in products liability. The offending provision did not require confidentiality or non-disparagement as a condition of receiving a refund. Rather, confidentiality or non-disparagement was required as a condition of receiving a payment to settle a personal injury lawsuit. The Court is not suggesting that all lawsuit settlements are automatically immune from Civ. Code § 1748.50. Suppose, for example, a dissatisfied consumer, stonewalled in informal efforts to resolve his complaints, filed suit for a refund. In that circumstance, perhaps a settlement payment might properly be considered a refund subject to the statute. But no such facts are before the Court. Plaintiff undisputedly settled a personal injury claim. His complaint in the prior lawsuit claims standard personal injury damages. Plaintiff did not seek to recover the purchase price for his vehicle. (RJN, Ex. B, at ¶ 11.) Because Plaintiff’s settlement agreement is not covered by Civ. Code § 1748.50, Defendants’ demurrer is sustained. Further, because the Court does not see how this defect can be cured by amendment, leave to amend is denied.
10	CITY OF IRVINE, a Municipal corporation vs. ENTERPRISES LIMITED PARTNERSHIP, a California Limited Partnership 2026-01554211	Plaintiff’s Motion to Prejudgment Possession Before the Court are motions for prejudgment possession in five eminent domain cases arising from the City of Irvine’s planned improvement of the intersection of Jamboree Road and Barranca Parkway: 1. <i>City of Irvine v. ERD Enterprises Limited Partnership</i>, No. 26-01554211 2. <i>City of Irvine v. Corporate Park Property Owner’s Association, Inc.</i>, No. 26-01554947 3. <i>City of Irvine v. Thrifty Oil Co.</i>, No. 26-01554208 4. <i>City of Irvine v. Blackburg, Inc.</i>, No. 26-01554305 5. <i>City of Irvine v. 96 Corporate Park</i>, No. 26-01554983 The City’s motions in <i>Thrifty Oil</i> and <i>Blackburg</i> are opposed by Tesla, Inc., an alleged tenant of the properties at issue. Tesla’s oppositions are joined by Thrifty Oil and Blackburg, the property owners of record. The other three motions are unopposed. All five motions for prejudgment are DENIED WITHOUT PREJUDICE. <u>GROUNDNS FOR RULING</u> CCP § 1255.410(a) requires that a motion for prejudgment possession “state the date after which the plaintiff is seeking to take possession of the property.” None of the City’s five motions included this date. After Tesla pointed out this omission in its two oppositions, the City served a “Notice of Requested Date for Prejudgment Possession” in each of the five cases on September 3, 2026. Tesla contends the City’s omission of the date warrants denial of the two motions. The Court agrees. Moreover, because this defect is present in each of the five motions, all five must be denied. “‘The proceeding to condemn